

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rose Lantigua (S14)	Team: Squad #14	CCRB Case #: 201700204	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/01/2017 3:30 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 7/1/2018	Precinct: 42		
Date/Time CV Reported Mon, 01/02/2017 8:53 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/09/2017 10:57 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Gary Tagliaferri	536	955555	HBXQ RT
2. POM Michael Maffei	31773	953035	HBXQ RT
3. SGT Raymond Contreras	01867	929933	HBXQ RT
4. POF Nicole Christopher	13481	952587	HBXQ RT
5. SGT Victor Villalobos	03195	942670	HBXQ RT
6. An officer			HBXQ RT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joshua Tice	15078	952293	HBXQ RT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Victor Villalobos	Discourtesy: § 87(2)(b) in the Bronx, Sergeant Victor Villalobos spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . SGT Victor Villalobos	Discourtesy: § 87(2)(b) in the Bronx, Sergeant Victor Villalobos spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Gary Tagliaferri	Discourtesy: § 87(2)(b) in the Bronx, Police Officer Gary Tagliaferri spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Gary Tagliaferri	Discourtesy: § 87(2)(b) in the Bronx, Police Officer Gary Tagliaferri spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . SGT Victor Villalobos	Abuse: § 87(2)(b) in the Bronx, Sergeant Victor Villalobos searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Exonerated
F . POM Michael Maffei	Abuse: § 87(2)(b) in the Bronx, Police Officer Michael Maffei searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Exonerated
G . An officer	Force: At the 42nd Precinct stationhouse, an officer used physical force against § 87(2)(b)	G . Complainant Uncooperative
H . SGT Raymond Contreras	Abuse: At the 42nd Precinct stationhouse, Sergeant Raymond Contreras strip-searched § 87(2)(b)	H . Complainant Uncooperative
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 2, 2017, § 87(2)(b) called the IAB command center to file this complaint on behalf of himself and his girlfriend, § 87(2)(b). The complaint was received at the CCRB on January 9, 2017.

On January 1, 2017, at approximately 3:38 a.m., § 87(2)(b) had parked his vehicle in the vicinity of § 87(2)(b) in the Bronx. § 87(2)(b) was seated in the passenger's seat. Sergeant Victor Villalobos and Police Officer Gary Tagliaferri of Housing Bureau Bronx/Queens Response Team arrived and exited their vehicle. Sgt. Villalobos allegedly ordered § 87(2)(b) and § 87(2)(b) to "get the fuck out of the car" (**Allegations A and B**). § 87(2)(b) and § 87(2)(b) complied and were brought to the rear of the vehicle. Sgt. Villalobos and PO Tagliaferri allegedly ordered § 87(2)(b) and § 87(2)(b) to "shut the fuck up" (**Allegations A through D**).

Police Officer Michael Maffei, Sergeant Raymond Contreras, Police Officer Joshua Tice, and Police Officer Nicole Christopher of Housing Bureau Bronx/Queens Response Team also arrived to the location. Sgt. Villalobos, PO Maffei, and PO Tagliaferri searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants (**Allegations E through F**).

§ 87(2)(b) and § 87(2)(b) were arrested and transported to the 42nd Precinct stationhouse. There, an officer allegedly grabbed § 87(2)(b) by his neck and pushed him against a wall, and Sgt. Contreras strip-searched him (**Allegations G and H**).

§ 87(4-b), § 87(2)(g)

There is no video evidence in this case.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- As of June 15, 2017, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the New York City Comptroller's Office regarding this incident (Board Review 01).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Civilian and Officer CCRB Histories

- This is § 87(2)(b) s and § 87(2)(b) s first CCRB complaint (Board Review 04) (Board Review 05).
- This is the first CCRB complaint filed against PO Tagliaferri, a four-year-member-of-service, PO Maffei, a five-year-member-of-service, and PO Christopher, a five-year-member-of-service (see officer history).
- Sgt. Villalobos has been a member of the NYPD for 11 years, and has 11 allegations in five cases. In case number 201309539, a discourtesy allegation was unsubstantiated.

§ 87(2)(g)

Potential Issues

§ 87(2)(b) provided a brief phone statement, but was ultimately uncooperative with the investigation (see IAs for contact attempts).

Findings and Recommendations

Allegation not pleaded

§ 87(2)(g)

Allegation A -Discourtesy: In front of § 87(2)(b) in the Bronx, Sergeant Victor Villalobos spoke discourteously to § 87(2)(b)

Allegation B -Discourtesy: In front of § 87(2)(b) in the Bronx, Sergeant Victor Villalobos spoke discourteously to § 87(2)(b)

Allegation C -Discourtesy: In front of § 87(2)(b) in the Bronx, Police Officer Gary Tagliaferri spoke discourteously to § 87(2)(b)

Allegation D -Discourtesy: In front of § 87(2)(b) in the Bronx, Police Officer Gary Tagliaferri spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Villalobos ordered her and § 87(2)(b) to “get the fuck out of the car.” § 87(2)(b) and § 87(2)(b) voluntarily exited their vehicle. § 87(2)(b) initially alleged that Sgt. Villalobos was the only officer who used profanity. However, § 87(2)(b) later alleged that PO Tagliaferri told her to “shut the fuck up” when she asked him why he and Sgt. Villalobos were harassing her and § 87(2)(b). In total, Sgt. Villalobos and PO Tagliaferri allegedly ordered § 87(2)(b) and § 87(2)(b) to “shut the fuck up” more than 20 times throughout the incident (Board Review 06).

In his brief phone statement, § 87(2)(b) corroborated that Sgt. Villalobos ordered him and § 87(2)(b) to “shut the fuck up,” but he did not mention Sgt. Villalobos and PO Tagliaferri allegedly ordering them to “get the fuck out” of the vehicle (Board Review 07).

Sgt. Villalobos and PO Tagliaferri said that § 87(2)(b) and § 87(2)(b) were verbally combative upon approach, and that § 87(2)(b) was ordered to exit the vehicle, but they denied that either civilian was ordered to “get the fuck out of the car.” They both said that § 87(2)(b) was escorted to the rear of the vehicle. PO Tagliaferri said that Sgt. Villalobos spoke with § 87(2)(b).

§ 87(2)(b) who was eventually removed from the vehicle and escorted to the rear. Sgt. Villalobos said that § 87(2)(b) jumped out of the vehicle and started yelling when § 87(2)(b) was escorted to the rear. Sgt. Villalobos and PO Tagliaferri both denied making the alleged discourteous statements, and Sgt. Contreras, PO Tagliaferri, PO Maffei, and PO Christopher denied hearing them do so (Board Review 08) (Board Review 09) (Board Review 10) (Board Review 11) (Board Review 12) (Board Review 13).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A through D** be closed as **unsubstantiated**.

Allegation E –Abuse of Authority: In front of § 87(2)(b) in the Bronx, Sergeant Victor Villalobos searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation F–Abuse of Authority: In front of § 87(2)(b) in the Bronx, Police Officer Michael Maffei searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) alleged that as she stood at the rear of the vehicle with § 87(2)(b) and PO Tagliaferri, she saw the reflection of a flashlight and overheard Sgt. Villalobos “rustling” inside the vehicle. § 87(2)(b) was escorted to the police vehicle, and from there, she alleged that she saw officers enter her and § 87(2)(b) s vehicle and that it was searched approximately three or four times. However, § 87(2)(b) then said that she did not have a view of the vehicle from her new position, but overheard officers open the vehicle door and move food around. § 87(2)(b) acknowledged that marijuana was recovered from the floor of the vehicle and said that a marijuana cigarette was recovered outside of the vehicle.

In his brief phone statement, § 87(2)(b) denied that there were narcotics inside of the vehicle.

Sgt. Villalobos said that upon approach, he smelled burning marijuana and observed smoke near the ceiling inside of the vehicle. PO Maffei also smelled marijuana upon approach. PO Tagliaferri and Sgt. Contreras also said that they smelled an odor of marijuana emanating from the vehicle. PO Tice did not recall whether he smelled marijuana.

Sgt. Villalobos stated that he conducted an investigation into the smell of marijuana. He searched the vehicle to recover the marijuana cigarette that he suspected was inside. Sgt. Villalobos entered via the driver’s side and searched the driver’s seat, floor, door panel, and center console. Eight to ten bags of crack cocaine were recovered from the center console, but Sgt. Villalobos did not recall which officer recovered the narcotics.

PO Maffei § 87(2)(g) said he opened the driver’s side door and found a can of pepper spray on the door. PO Maffei visibly searched the driver’s side and then exited the vehicle. He reentered the vehicle through the passenger’s side and opened the closed center console, where he observed nine bags of crack cocaine.

PO Maffei stated that he approached § 87(2)(b) to inform her about the narcotics that were recovered from the vehicle. Upon approach, PO Maffei noticed that § 87(2)(b) was crushing a lit marijuana cigarette with her foot. PO Maffei recovered remnants of the marijuana cigarette underneath § 87(2)(b)'s foot.

A marijuana cigarette and vegetative marijuana packaged in brown paper were vouchered by PO Maffei (Board Review 14).

The smell of marijuana smoke, with nothing more, is sufficient to provide police officers with probable cause to search a vehicle and its occupants. People v. Chestnut, 43 A.D.2d 260 (1974), (Board Review 15).

§ 87(2)(g)

it is therefore recommended that **Allegations F and G** be closed as **exonerated**.

Allegation G–Force: At the 42nd Precinct stationhouse, an officer used physical force against

§ 87(2)(b)

Allegation H–Abuse of Authority: At the 42nd Precinct stationhouse, Sergeant Raymond Contreras strip-searched

§ 87(2)(b) In his brief phone statement, § 87(2)(b) alleged that an unidentified officer grabbed him by the neck and pushed him against the wall because he did not want to remove his jewelry. § 87(2)(b) also alleged that Sgt. Contreras strip-searched him. § 87(2)(g)

§ 87(2)(g), it is recommended that **Allegations I and J** be closed as **complainant uncooperative**.

§ 87(4-b), § 87(2)(g)

Squad: **14**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date